

CV-25-009269 EVITT, KENNETH BRYAN vs CITY OF MODESTO - Defendant County of Stanislaus's Demurrer to Each Cause of Action of Plaintiff's First Amended Complaint - SUSTAINED, with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Based upon review of the moving and supporting papers, as well as the lack of substantive argument in opposition thereto, the Court sustains the Demurrer in its entirety. Specifically, the Court notes that only the Third Cause of Action contains any factual allegations against the County, and the claims suggested therein appear to be barred by the applicable statutes of limitation on the face of the pleading. Under the circumstances, it is Plaintiff's burden to plead facts showing a ground for suspension, delayed accrual, or application of another theory for avoidance of the statute. (See, e.g., County of Alameda v. Superior Court (1987) 195 Cal.App.3d 1283, 1286-1287.) Plaintiff shall submit his Second Amended Complaint within 20 days.

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